

		own treatment of Plaintiff. Dr. Haghverdian provides a reasoned basis for his standard of care and causation opinions and disputes the findings of Dr. Kolodenker. Thus, there is a triable issue of material fact as to the elements of breach of duty and causation such that the motion must be DENIED. Plaintiff shall provide notice.
10	Casate vs. Allview Real Estate 2026-01542936	Motion to Strike Complaint <i>Continued to 6/25/26. See minute order dated 6/1/26.</i>
11	Hoag Memorial Hospital Presbyterian vs. Monarch Health Plan, Inc. 2026-01546114	Demurrer to Amended Complaint <i>Continued to 7/23/26. See minute order dated 6/1/26.</i>
12	Woo vs. General Motors, LLC 2025-01518945	Motion for Attorney Fees <i>Continued to 7/23/26. See minute order dated 6/8/26.</i>
13	Rayas vs. Padilla 2023-01367764	Motion to Disqualify Attorney of Record Plaintiff Fernando J. Rayas’ motion to disqualify Callahan & Blaine, PC from representing Canchola-Padilla Limited Partnership [“Partnership”] is DENIED. (Code Civ. Proc., §§ 128, subd. (a)(5), 284, subd. (2) [court’s authority]; <i>Responsible Citizens v. Superior Court</i> (1993) 16 Cal.App.4th 1717, 1723-1724 [court’s authority to disqualify counsel “on a showing that disqualification is required under professional standards governing avoidance of conflicts of interest or potential adverse use of confidential information”]; <i>Jarvis v. Jarvis</i> (2019) 33 Cal.App.5th 113, 128 [disqualifying partnership counsel based on lack of authority of equal partner to appoint same].) Moving party has not shown the existence of a conflict requiring disqualification of Partnership counsel. The fact that Padilla and the Partnership both contend the Partnership is dissolved, does not mean that Partnership counsel cannot represent the Partnership’s best interests, and moving party cites no authority that it does. (<i>Dickson, Carlson & Campillo v. Pole</i> (2000) 83 Cal.App.4th 436, 445 [“A partnership does not terminate upon dissolution but continues until the winding up of partnership affairs is

	completed”]; see also Corp. Code, § 15908.03, subd. (a) [“A limited partnership continues after dissolution only for the purpose of winding up its activities”]; <i>Cotten v. Perishable Air Conditioners</i> (1941) 18 Cal.2d 575, 577 [“In general a dissolution operates only with respect to future transactions; as to everything past the partnership continues until all pre-existing matters are terminated”].) Thus, regardless of whether the Partnership is dissolved, defense counsel may still properly defend partnership interests. Further, assuming Padilla remains a general partner as moving party contends, it is not necessarily a conflict for Padilla to assert the partnership is dissolved, nor defeat Padilla’s authority to appoint Partnership counsel. (<i>Dickson, Carlson & Campillo v. Pole, supra</i> at 445 [“The partners of a dissolved partnership owe each other a fiduciary duty to complete the partnership’s unfinished business ... includ[ing] an obligation to act in the highest good faith and not to obtain any advantage over the other partners in partnership affairs;” internal citations omitted]; see also Corp. Code, § 16803, subd. (c) [“A person winding up a partnership’s business may preserve the partnership business or property as a going concern for a reasonable time, <u>prosecute and defend actions and proceedings</u>, whether civil, criminal, or administrative, settle and close the partnership’s business, dispose of and transfer the partnership’s property, discharge the partnership’s liabilities, distribute the assets of the partnership ... settle disputes by mediation or arbitration, and perform other necessary acts;” emphasis added].) As the motion is denied, moving plaintiff’s associated requests to prohibit defendants from appointing new counsel, and/or to strike the Partnership’s Answer, are likewise DENIED. Defendant Partnership shall give notice.
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